



CWP-35234-2024

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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CWP-35234-2024

Date of Decision: 07.01.2025

Naresh Kumar and others

...Petitioners

Versus

State of Haryana and others

...Respondents

CORAM: HON'BLE MR. JUSTICE JAGMOHAN BANSAL

Present: - Mr. Neeraj Kumar, Advocate for the petitioners

Mr. Praveen Chander Goyal,
Additional Advocate General, Haryana

JAGMOHAN BANSAL, J. (Oral)

1. The petitioners through instant petition under Articles 226/227 of the Constitution of India are seeking direction to respondents to release the notional annual increment for more than 6 months of service along with consequential benefits. They are further seeking to decide their representation dated 10.11.2024.

2. The petitioners are ex-employees of respondent-department. They have retired on attaining the age of superannuation. They are seeking one notional annual grade increment on the ground that they have completed 6 months service in the month of June and increment was granted w.e.f. July.

3. Learned counsel for the petitioner submits that grievance of the petitioner, at this stage would be redressed, if respondents are directed to decide their representation dated 10.11.2024 in terms of judgment of

Supreme Court in ***Director (Admn and HR) KPTCL and others v C.P.***



Mundinamani and others, 2023 SCC OnLine SC 401 and of this Court in *Jagdish Rai Gupta v. State of Haryana and others, 2024 SCC Online P&H 5832*.

4. Notice of motion.
5. Mr. Praveen Chander Goyal, Additional Advocate General, Haryana accepts notice on behalf of the respondent-State and waive service.
6. With the consent of both sides, the matter is taken up for final adjudication.
7. Learned State counsel asserts that he has no objection, if petition is disposed of with a direction to respondents to decide representation of the petitioners in a time bound manner and in view of judgment of Supreme Court in *C.P. Mundinamani and others (supra)* and *Jagdish Rai Gupta (supra)*.
8. In the wake of statement of both sides, the present petition stands disposed of with a direction to respondents to decide claim of the petitioners within three months from today. The competent authority is expected to consider judgment of Supreme Court in *C.P. Mundinamani and others (supra)* and *Jagdish Rai Gupta (supra)* while adjudicating claim of the petitioners.

(JAGMOHAN BANSAL)
JUDGE

07.01.2025
Mohit Kumar

Whether speaking/reasoned	Yes/No
Whether reportable	Yes/No